

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE
COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC
Plaintiff

v.

Case Number 25 CC 715

GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY IN POSSESSION,
Defendant

ORDER ON PLAINTIFF'S AMENDED MOTION IN LIMINE

This matter came before the Court for hearing on December 2, 2025 on the Plaintiff's Motion in Limine. Both parties were present at the hearing. Having heard the parties' presentations, reviewed the court file, and being otherwise duly advised in the premises, the Court finds and rules as follows.

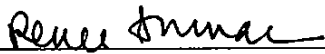
1. The trial in this case is set for next week. The pleadings that frame the issues in this case are:
 - a. Plaintiff's Complaint. In Count I, the Plaintiff seeks possession of Lot #38 based on a claim that the Defendant failed to pay rent due after providing notice under Chapter 723 on February 7, 2025. The Plaintiff also seeks damages in the form of rent arrears (Count II). The Defendant denies that rent was due starting in January, as he claims his mobile home was destroyed and uninhabitable, he advised the Plaintiff he was vacating prior to January 1, 2025, and this action is retaliation.
 - b. Defendant's Counterclaim. In addition to his defenses to the Plaintiff's claims, the Defendant included in his Answer a section entitled "Claim for Relief". See Answer and Counterclaim (filed March 3, 2025), pp. 3-4. In this section, the Defendant alleges that, as a result of this action being filed against him, he has sustained "damages including Court costs and other such expenses related to this case."
2. The Plaintiff now files its motion in limine to address several possible evidentiary issues at the trial. See *Onewest Bank, FSB v. Alessio*, 182 So. 3d 855, 857 (Fla. 4th DCA 2016) ("[t]he purpose of a motion in limine is generally to prevent the introduction of improper evidence, the mere mention of which at trial would be prejudicial").
3. Subpoena Duces Tecum directed to C. Nate Nelson on November 14, 2025. There is nothing in the court file, other than the subpoena issued by the Clerk here in Manatee County, demonstrating when or how Mr. Nelson received the subpoena. The Court takes no action on the November 14, 2025 subpoena to Mr. Nelson other than to note that it is a subpoena duces tecum (not a subpoena for testimony), and (from what the Court can tell) does not appear to be in compliance with either § 92.251(3), Fla. Stat. or UTAH CODE ANN. §§ 78B-17-201 to 78B-17-204. See *Luv N Care, Ltd. v. Hakim*, 385 So. 3d 620 (Fla. 4th DCA 2024).
4. Evidence of mobile home damage. The Plaintiff's motion is **GRANTED**, in part. Based on its findings of law in its April 2025 Order, the Court does not find that evidence regarding the condition of the mobile home is relevant, as the parties' lot rent agreement was as to the land not the personal property (*i.e.*, the mobile home) of the Defendant sitting on the land. The Court will,

however, permit general, limited reference to the condition of the mobile home for context as to why the Defendant vacated the property.

5. Evidence of the condition of the premises. The Plaintiff moves to exclude “evidence of the condition of the premises, or whether the property has been examined by representatives of City of Palmetto Code Enforcement.” The Defendant indicated at the hearing that his defense includes an argument that there was damage to the land, that is, that the lot is not buildable because it is in a flood plain and does not meet setback requirements. The Plaintiff’s motion is **DENIED**. The Court notes, however, that any evidence on this issue must be properly offered.
6. Evidence of independent tort and punitive damages. The Plaintiff’s motion is **GRANTED**. The Defendant’s pleadings assert defenses to the Plaintiff’s claims, and allege he has sustained “damages including Court costs and other such expenses related to this case.” At the hearing, the Defendant reiterated that the “damages” he seeks include time he took off of work to generally address this case, and to drive to Manatee County (the Defendant lives in Mississippi) to interview witnesses and make registry deposits.

The Court finds the Defendant has not pled any independent tort or punitive damages, and finds that the monies he seeks are “costs,” not “damages”. See *Mincin v. Short*, 662 So. 2d 1323, 1324 (Fla. 2d DCA 1995) (“[i]t is well settled in this state that statutory costs are not damages and are recoverable by a successful litigant only as an incident to the main action”), *overruled on other grounds White v. Steak and Ale of Florida, Inc.*, 816 So. 2d 546 (Fla. 2002); *Certain Lands v. City of Alachua*, 518 So. 2d 386, 389 (Fla. 1st DCA 1987) (“the common overall meaning accorded to ‘costs’ in the context of a lawsuit is the expense incurred in prosecuting or defending an action”); *Golub v. Golub*, 336 So. 2d 693 (Fla. 2d DCA 1976) (“[c]osts are statutory allowances recoverable . . . as an incident to the main adjudication”). Because damages are determined by a jury, and costs are determined by the Court, unless there is a proper motion or an agreement of the parties, evidence as to any independent tort or punitive damages will not be permitted. See § 723.0861 (prevailing party is entitled to their costs); *Rutkin v. State Farm Mut. Auto. Ins. Co.*, 195 So. 2d 221, 223 (Fla. 3d DCA 1967) (“in a jury trial the amount of costs is determined by the judge, while only the compensatory damages are assessed by a jury”).

DONE AND ORDERED in Chambers, Bradenton, Manatee County, Florida on this 3 day of December 2025.



Renee Inman, County Judge

Copies to:

William Price, III, Esq. (pleadings@wcprielaw.com)

George Yeske (george.yeske@gmail.com) AND 14382 O’Neal Road, Gulfport, MS 39503